

25STCV15420 25STCV15420

County: los-angeles

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Case Number: 25STCV15420 Hearing Date: July 28, 2026 Dept: 529

THE HUMMINGBIRD RANCH, LLC VS JOHN LEONARDO, ET AL.

MOTION

FOR PRELIMINARY INJUNCTION

Date

of Hearing: July

28, 2026 Trial

Date: None

set

Department: 529 Case No.: 25STCV15420

Moving

Party: Cross-Complainants John Leonardo and JL Construction and Design, LLC

Responding

Party: Cross-Defendants The

Hummingbird Ranch, LLC and Thomas Webb

BACKGROUND

On May 28, 2025, Plaintiff The

Hummingbird Ranch, LLC filed a complaint against Defendants John Leonardo,

Nancy Leonardo and JL Construction and Design, LLC for violation of Business

and Professions Code section 7031, negligence, money had and received and

accounting. On November 10, 2025, the parties stipulated to add Thomas Webb as

a Plaintiff to the complaint. On July 8, 2026, Plaintiff filed a First Amended

Complaint, adding American Contractors Indemnity Company and asserting causes of action for violation of Business and Professions Code section 7031, money had and received, breach of contract, an action pursuant to Code of Civil Procedure 1029.8, and claim on contractors license bond.

Defendant John Leonardo filed a cross-complaint against The Hummingbird Ranch, LLC and Thomas L. Webb for quantum meruit. On September 15, 2025, Defendant Leonardo filed a First Amended Cross-Complaint, adding a cause of action for fraud and misappropriation; Civil Code §1709 §1710 and violation of Business and Professions Code §7027.3.

[TENTATIVE]

RULING

Motion for Preliminary Injunction is DENIED.

REQUEST

FOR JUDICIAL NOTICE

Cross-Complainants John Leonardo and JL Construction and Design, LLC seek judicial notice of the existence, issuance, and content of County of San Bernardino building permit No. ALTR 2025-00786 for the property at 84889 Amboy Road, Wonder Valley, California, as an official act and record of a public agency — including that the permit lists John Leonardo, License No. 1079154, as the Primary Licensed Professional and General Contractor of record; describes the work as 'Renew ALTR 2024-00052 for Final Inspection'; communications documents regarding the permit reflect 'Owner Builder: No'; documents identify Thomas L. Webb as the applicant and representative; and documents reflect inspection activity occurring on the property under permit No. ALTR-2025-00786 in October 2025. (Exh. A.)

The court grants the request for judicial notice.

In opposition, Hummingbird Ranch, LLC and Thomas Webb request this court take judicial notice of the entire filing in this action, Cross-Defendants First Amended Cross-Complaint filed September 15, 2025, and Cross-Defendants Proposed Second Amended Cross-Complaint lodged on or about June 30, 2026.

The court grants the request for judicial notice.

In reply, Cross-Complaints request this court take judicial notice of the The Minute Order (Ruling on Submitted Matter) entered by this Court on January 13, 2026, ruling on Plaintiff and Cross-Defendants' demurrer to the First Amended Cross-Complaint (Exh. 1) and The Certified License History for Contractor's License No. 1079154, certified on June 26, 2026 by the Custodian of Records of the Contractors State License Board (Exh. 2).

The court grants the request for judicial notice.

DISCUSSION

Cross-Complainants John Leonardo and JL Construction and Design, LLC move for a preliminary injunction. Cross-Complainants seek an order restraining Cross-Defendants Thomas L. Webb and The Hummingbird Ranch, LLC, and their agents, from any further use of John Leonardo's name or License No. 1079154 in connection with the Property or any San Bernadino County permit, including ALTR-2025-00786, and requiring them to take all steps necessary to remove Leonardo as contractor of record on ALTR-2025-00786. Cross-Complainants make the motion on the grounds everyday Cross-Complainants are listed as the contractor of record under License No. 1079154, he is exposed to CSLB discipline and bond liability for work he never performed, supervised, or authorized.

For preliminary injunctions, a party must establish both irreparable harm and a likelihood of success on the merits. (Millennium Rock Mortg., Inc. v. T.D. Service Co. (2009) 179 Cal.App.4th 804, 812.) "An evaluation of the relative harm to the parties upon the granting or denial of a preliminary injunction requires consideration of: '(1) the inadequacy of any other remedy; (2) the degree of irreparable injury the denial of the injunction will cause; (3) the necessity to preserve the status quo; [and] (4) the degree of adverse effect on the public interest or interests of third parties the granting of the injunction will cause.'" (Vo v. City of Garden Grove (2004) 115 Cal.App.4th 425, 435.) "[T]he more likely it is that plaintiffs will ultimately prevail, the less severe must be the harm that they allege will occur if the injunction does not issue

[I]t is the mix of these factors that guides the trial court in its exercise of discretion.” (Right Site Coalition v. Los Angeles Unified School Dist. (2008) 160 Cal.App.4th 336, 342.) “The ultimate questions on a motion for a preliminary injunction are (1) whether the plaintiff is ‘likely to suffer greater injury from a denial of the injunction than the defendants are likely to suffer from its grant,’ and (2) whether there is ‘a reasonable probability that the plaintiffs will prevail on the merits” (Huong Que, Inc. v. Luu (2007) 150 Cal.App.4th 400, 408. Procedurally, an application for a preliminary injunction, must be based upon sufficient evidence. (CCP §527(a); Bank of America v. Williams (1948) 89 Cal.App.2d 21, 29.)

Cross-Complainants request this court issue a preliminary injunction and restrain Cross-Defendants from use of Leonardo's license on any San Bernardino permit. Cross-Complainants contend irreparable harm will occur as the permit is active and the County is presently treating Leonardo as the responsible licensee for work he did not perform. Cross-Complainants argue neither Leonardo's explicit May 5, 2025 disavowal to the County nor this pending litigation stopped the permit's continued use. Cross-Complainants also argue there is a likelihood of prevailing as the County's own certified record establishes the operative facts: ALTR-2025-00786 lists Leonardo's License No. 1079154 as the Primary Licensed Professional, is described as a ‘Renew[al of] ALTR-2024-00052,’ reflects ‘Owner-Builder: No,’ and identifies Webb as the applicant. Leonardo was unaware of this permit renewal, disavowed authorization and did not sign or consent.

In opposition, Cross-Defendants argue Leonardo authorized the use of his alleged contractor's license in conjunction with the 2024 permit application and regardless, relief is moot because Cross-Defendants removed Leonardo's information from the 786 permit once discovering the County failed to remove his information upon their initial request. Cross-Defendants also submit the declaration of Ricardo Moreno to establish Cross-Defendants did not use Leonardo's contractor number without his permission.

Cross-Complaints argue, in reply, a party cannot defeat an injunction motion by altering the disputed record after being served, and voluntary cessation that begins only after service does not deprive the court of the power to grant effectual relief. Instead, cessation defeats injunctive relief only where there is no reasonable expectation the conduct will recur. (Center for Local Government Accountability v. City of

San Diego (2016) 247 Cal.App.4th 1146, 1157.) In this matter, Cross-Complainants contend Plaintiff's removal of Leonardo was not good-faith abandonment and there is reasonable expectation the conduct will be repeated as Cross-Defendants oppose this injunction, insists the use was authorized, is currently completing work on the property, and has already used the license twice (the second time while this action was pending). Cross-Defendants were also to keep the notice at the project so the claim Mr. Webb never saw the permit is not true. Moreover, the relief sought reaches any future use and is not limited to permit 786 as Cross-Defendants suggest.

The court denies the motion for preliminary injunction. As noted by Exhibit 1 of the opposition, Cross-Defendants had requested the contractor information be changed to an owner/builder permit back in August of 2025. Under penalty of perjury, Mr. Webb states when the County issued the 786 Permit, he never viewed a copy of the permit and was unaware that there was any reference to Leonardo. (Webb Decl. ¶10.) Upon discovering this information when he was served the instant motion, Mr. Webb took immediate action and requested to remove any reference to Leonardo. (Webb Decl., Exh. 3.) There is nothing before the court that Cross-Defendants would then again list Leonardo's name or contractor's license number as contractor of record on ALTR-2025-00786.

Based on the foregoing, the motion for preliminary injunction is DENIED.

Cross-Defendants also request the court set an OSC re: sanctions against both Cross-Complainants and their counsel, jointly and severally, to cover the costs to oppose this motion. The court declines to issue an OSC. This case was a close call and nothing about Cross-complainants' conduct was inappropriate, in this court's opinion.